

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, December 5, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-31403 against LT Ben Kurian, Tax Registry No. 936894. The case was conferenced on November 26, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Line who approved the negotiated penalty of a Schedule A Command Discipline and a forfeiture of five (5) vacation days after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-030722BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, KURIAN	FIRST BEN	M.I.	COMMAND 161
SHIELD NO. 00000	TAX REGISTRY NO. 936894	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Ben KURIAN, on or about April 14, 2023, at approximately 2327, while assigned to MS TIMES SQ and on duty, in the vicinity of 3 Times Square in Manhattan, New York County, wrongfully used force, in that LT Kurian used unreasonable physical force against § 87(2)(b) by punching § 87(2)(b) without police necessity.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Lieutenant Ben KURIAN, on or about June 29, 2023, at approximately 1044, while assigned to MS TIMES SQ, and on duty, in the vicinity of 100 Church Street, New York County, provided an inaccurate official statement to the Civilian Complaint Review Board in that LT Kurian denied using a closed fist to strike § 87(2)(b) on April 14, 2023.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated

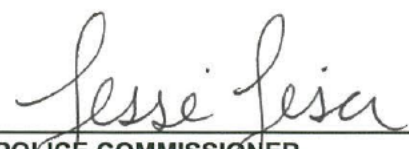


FIRST DEPUTY COMMISSIONER

12/26/24

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



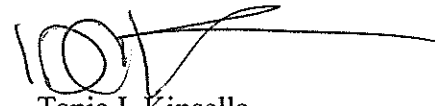
POLICE COMMISSIONER

1/7/25

DATE

THIRD ENDORSEMENT

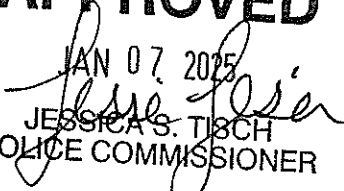
First Deputy Commissioner to Police Commissioner, December 26, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-31403 (PODS Case #C-030722; CCRB Case #202303194) against Lieutenant Ben Kurian, Tax #936894, with the recommendation that the Charges and Specifications against Lieutenant Kurian be dismissed and that Lieutenant Kurian receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED
JAN 07 2025

JESSICA S. TISCH
POLICE COMMISSIONER